GENIUS JOEL MAPOSA
and
DERICK MUNSELE
versus
SAM MAGOMBEDZE
and
THE REGISTAR OF DEEDS N.O.
and
THE SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE, 6 May & 1 June 2026

Urgent Chamber Application

I Nderere, for the applicants
A Chimhofu, for the 1st respondent
No appearance for the 2nd and 3rd respondents

MUREMBA J: The applicants, Genius Joel Maposa and Derick Munsele, brought this urgent chamber application for a stay of execution of a default judgment granted by this court on 16 March 2026 under case number HC 428/23-1. They seek to halt execution until the finalisation of their rescission application filed under case number HCH 2136/26. The respondents are Sam Magombedze, the Registrar of Deeds and the Sheriff of the High Court. The order sought is couched as follows.

> "**TERMS OF FINAL ORDER SOUGHT**
>
> 1. Enforcement of a default order issued by this court pursuant to case number HC428/23-1 shall be stayed pending the determination of the application for rescission of judgement under HCH2136/26
>
> 2. Each party shall bear its own costs.
>
> **INTERIM RELIEF GRANTED**
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> Pending the confirmation of the final order, it is ordered that, the respondents be and are hereby interdicted from enforcing the judgment/order by the Honourable Dembure J under HC428/23-1 on the 16th of March 2026 and/or to act upon such order."

In the present application the applicants are seeking the granting of the provisional order. The founding affidavit was deposed to by their former legal practitioner, Mr. Tapiwa John Chivanga, who explained his direct involvement in the matter and his authority to speak to the facts. In the affidavit, Mr. Tapiwa John Chivanga explained that he had previously acted as one of the applicants' legal practitioners of record when he was still working at Scanlen and Holderness Law Firm. He stated that he is a duly registered legal practitioner practising in terms of the laws of Zimbabwe. He stated that he officially disengaged from the firm of Scanlen & Holderness, on 2 April 2026. Following his disengagement, he undertook and completed an orderly handover of all files under his conduct to the remaining practitioners in the firm.

He further averred that he is duly authorised to depose to the affidavit on behalf of the applicants, having been personally and directly involved in the conduct of the matter from its inception. He emphasised that he was deposing to the affidavit by virtue of his intimate knowledge and comprehensive understanding of the factual, technical, legal, and procedural issues giving rise to the application. He explained that these issues fell within his personal knowledge or had been gathered by him in the course of his professional engagement on behalf of the applicants. Mr. Chivanga also stated that the averments made in the affidavit were to the best of his knowledge and belief, true and correct. He affirmed that he was able to swear positively to the facts deposed therein.

Mr Chivanga averred that between April and May 2015, the applicants entered into a written agreement of sale with the first respondent for immovable property valued at USD 100,000. The applicants were the purchasers, while the first respondent was the seller. Payments of the purchase price were made in instalments, including direct deposits, settlement of the respondent's mortgage bond, and acquisition of shares in Anch Six Mining Company. Although the first respondent later confirmed that the mortgage had been extinguished and assured transfer of the property, he subsequently repudiated the agreement in 2022 and attempted to convert the transaction into a loan arrangement, which the applicants rejected. The applicants had already taken occupation of the property as beneficial purchasers with the first respondent's consent.

Following the first respondent's refusal to transfer the property, the applicants issued summons under HC 428/23 seeking declaratory relief and transfer of title. The matter was defended and proceeded to pre-trial conference, where it was consolidated with another case between the parties, HCH 8245/22, by order of Justice Mambara in March 2025. After

consolidation, the applicants' legal practitioners received no notice of set down on the electronic case management system (IECMS) and believed the matter had not yet been scheduled for trial. During handover of the file to Mr Nderere, Mr. Chivanga advised Mr. Nderere to follow up with the Registrar on the position of the matter. It was then discovered that after consolidation, the matter had generated a separate case number, HC 428/23-1, to which Scanlen & Holderness was not electronically linked. As a result, the firm received no notifications and was unaware that the matter had been heard and determined in default on 16 March 2026. The registrar of this court later confirmed that Scanlen and Holderness did not appear on the system for that case, explaining the absence of notifications.

Mr Chivanga further contended that upon being later linked to the case, the applicants discovered that the first respondent had instructed the Sheriff who is the third respondent in this matter to execute the default judgment. Attachment documents had been issued. This is what prompted the filing of the present application for stay of execution. The matter is urgent because the applicants only became aware of the default judgment on 29 April 2026. They acted promptly, filing this application within one working day. Execution would cause irreparable harm to the applicants, as they risk losing property they purchased and occupied, and such harm cannot be remedied by damages. Execution would unjustly enrich the respondent, who has already received substantial payments, including discharge of his mortgage bond, yet now seeks to retain both the property and the payments.

Mr Chivanga averred that the court has wide discretion in deciding whether to grant a stay of execution, and that such discretion must be exercised in line with the interests of justice. He contended that the requirements for such an application are satisfied in this case. The overriding interest of justice demands that execution of the default judgment be stayed pending determination of the applicants' rescission application. The default judgment was granted in circumstances where the applicants were denied the opportunity to participate due to confirmed technical and administrative irregularities in the electronic case management system. Allowing execution to proceed would unjustly elevate procedural defects over substantive justice and cause prejudice to the applicants without any adjudication on the merits. Mr Chivanga emphasized the constitutional principle of *audi alteram partem*, noting that the applicants were effectively excluded from the proceedings and now seek rescission to ensure a fair hearing. If execution is allowed before they are heard, their rescission application will be rendered nugatory, as once the property is attached or sold, it cannot be restored to its original state. This would cause irreversible prejudice to the applicants while

unjustly benefiting the first respondent. Accordingly, it is both prudent and just that execution be stayed to preserve the subject matter of the dispute and ensure that the rescission application is meaningful rather than academic.

Points In Limine

(i) The deponent's lack of authority to depose to the founding affidavit

In response to the application, the first respondent raised a point *in limine*, arguing that the application is fatally defective. The objection was premised on the fact that Mr. Tapiwa John Chivanga, who deposed to the founding affidavit on behalf of the applicants, lacked authority to represent them in the absence of a power of attorney expressly authorizing him to do so. The first respondent contended that Mr. Chivanga could not rely on a legal practitioner–client relationship that had terminated when he disengaged from Scanlen & Holderness Law Firm. Furthermore, Mr. Chivanga did not disclose in the founding affidavit which law firm he joined after leaving Scanlen & Holderness, nor whether he remains engaged in private practice as a duly licensed lawyer. The first respondent emphasized that the right to practice law and represent clients in Zimbabwe is granted by the Law Society of Zimbabwe through a valid practising certificate, which is tied to a specific law firm and ceases to be valid once the practitioner leaves that firm. In this case, Mr. Chivanga did not disclose the reasons for his disengagement from Scanlen & Holderness, nor did he confirm possession of a current practising certificate authorizing him to institute proceedings on behalf of clients. In the absence of such evidence, the first respondent argued, Mr. Chivanga is merely a busybody meddling in matters that do not concern him, and therefore lacks the mandate to represent the applicants. On this basis, the first respondent submitted that the application is fatally defective. A prayer was made that the application be struck off the roll with costs.

To reinforce the point *in limine*, Mr. *Chimhofu*, counsel for the first respondent, submitted that Mr. Chivanga's act of deposing to the founding affidavit in the present matter contravenes section 9(2)(c) of the Legal Practitioners Act [*Chapter 27:07*], which provides that:

> "Subject to any other law, no person other than a registered legal practitioner who is in possession of a valid practising certificate issued to him shall appear, plead or act in the capacity of a legal practitioner for or on behalf of any other person in any action, suit or other proceeding in any court of civil or criminal jurisdiction."

On the strength of this provision, Mr. *Chimhofu* argued that it was unlawful for Mr. Chivanga to depose to the founding affidavit on behalf of the applicants.

In response, Mr. *Nderere* submitted on behalf of the applicants that the point *in limine* lacks merit. He argued that Mr. Chivanga was the legal practitioner handling the applicants' matter before leaving Scanlen and Holderness, and importantly, the default judgment in issue was granted on 16 March 2026, prior to his departure from the firm on 2 April 2026. In terms of the law, a person who deposes to an affidavit must have personal knowledge of the facts averred, and Mr. Chivanga, having managed the matter, possessed such knowledge regarding the circumstances leading to the default judgment.

Relying on the case of *Dr Walter Mangezi* v *Dr Tonderai Irvine Tipere Kasu* HH 132-24, Mr. *Nderere* submitted that it is only a legal practitioner who can depose to an affidavit in a procedural matter. He further argued that section 9(2)(c) of the Legal Practitioners Act does not bar a legal practitioner from giving evidence before a court, and that deposing to an affidavit constitutes giving evidence rather than pleading within the meaning of the provision.

It is my understanding that section 9(2)(c) of the Legal Practitioners Act establishes a clear rule about who is legally permitted to act in the capacity of a legal practitioner before the courts. It provides that only a registered legal practitioner who holds a valid practising certificate may appear, plead, or act on behalf of another person in any civil or criminal proceedings. In essence, this provision safeguards the integrity of legal representation by ensuring that only duly licensed practitioners, recognized by the Law Society of Zimbabwe, can represent clients in court. The practising certificate is tied to the practitioner's professional status and affiliation with a law firm, and without it, any attempt to act as a legal practitioner is unlawful. The section therefore prevents unqualified or unauthorized individuals from conducting litigation, protecting both the courts and litigants from improper representation and ensuring adherence to professional and ethical standards.

I do not understand the provision to mean that a legal practitioner is barred from deposing to an affidavit on behalf of a client or a former client after leaving the law firm under which he previously represented that client. Deposing to an affidavit is not the same as "appearing, pleading, or acting" in the sense contemplated by section 9(2)(c). An affidavit is a form of evidence, and the rules of this court simply require that the deponent have personal knowledge of the facts being averred. Rule 58(4) of the High Court Rules, 2021 is instructive and it provides as follows:

> "(4) An affidavit filed with a written application— (a) shall be made by the applicant or respondent, as the case may be, or by a person who can swear to the facts or averments set out therein."

The rule provides that an affidavit must be sworn either by the applicant or respondent themselves, or by a person who can truthfully attest to the facts contained in it. In other words, the rule requires that the deponent have direct and personal knowledge of the matters set out in the affidavit. This ensures that the court is not asked to rely on hearsay or second-hand assertions when determining an application. The purpose of the rule is to preserve the integrity of the evidential foundation of applications, by insisting that affidavits be grounded in verifiable, first-hand testimony rather than speculation or information passed on by others. This means that if a legal practitioner personally handled a matter while working at a particular firm, they may have acquired direct and personal knowledge of the facts. Such knowledge does not disappear simply because they later left that firm. As long as the practitioner can swear to those facts from their own involvement, they remain competent to depose to an affidavit. The critical requirement is not the practitioner's current employment status, but whether they possess personal knowledge of the facts being sworn to.

In the circumstances of the present case, the key issue is whether Mr. Chivanga was giving evidence based on his personal knowledge of events that occurred while he was handling the applicants' matter, or whether he was purporting to act as their current legal representative without a valid practising certificate tied to a law firm. If he was merely providing evidence in affidavit form, section 9(2)(c) does not prohibit this, because deposing to an affidavit is not equivalent to pleading or acting as counsel. On the other hand, if he sought to represent the applicants in ongoing litigation without a valid practising certificate, then his actions would fall foul of the provision. Thus, the distinction lies in the nature of the act. Deposing to an affidavit is evidence-giving, which is permissible if based on personal knowledge, whereas representing clients in court proceedings requires a valid practising certificate.

Based on what Mr. Chivanga expressly stated in his founding affidavit, it cannot properly be said that he *appeared, pleaded, or acted in the capacity of a legal practitioner* for or on behalf of the applicants in the present application. His role was limited to deposing to the affidavit, and he made it clear that he had already disengaged from Scanlen & Holderness and handed over the file to other practitioners within the firm. The application itself was filed in the names of the applicants, and it was Mr. *Nderere* who formally lodged the application

and argued the matter in court. Therefore, even though Mr. Chivanga did not disclose the reasons for his disengagement from Scanlen and Holderness or confirm possession of a current practising certificate, that omission does not automatically render him a "busybody" or strip the affidavit of validity. His competence to depose depends on whether he had personal knowledge of the facts he swore to, not on whether he remained a practising lawyer at the time. The mandate to represent the applicants in court lay with Mr. *Nderere*, who filed and argued the matter.

In *Dr Walter Mangezi* v *Dr Tonderai Irvine Tipere Kasu* HH 132-24, this court reaffirmed the principle from *Dr Ibbo Mandaza* v *Mzilikazi Investments* HB 23/07 that a legal practitioner can depose to a founding affidavit in a case where the facts are within the practitioner's personal knowledge, especially in procedural matters. In such cases, the practitioner may even be better placed to present the facts. This reasoning supports the present finding that Mr. Chivanga, having direct involvement and personal knowledge of the matter on the basis of being the applicants' former legal practitioner, was justified in deposing to the founding affidavit without contravening section 9(2)(c).

In conclusion, while Mr. Chivanga could not act as counsel without a practising certificate, his affidavit stands as evidence because he was simply swearing to facts within his personal knowledge acquired while handling the matter. In other words, Mr Chivanga would be a competent *viva voce* witness to the facts were he to be called to testify. In the result, the point *in limine* is dismissed.

(ii) Founding affidavit fatally defective because of hearsay

Mr. *Chimhofu* contended that the founding affidavit was replete with hearsay, as Mr. Chivanga lacked personal knowledge of the transactions between the applicants and the first respondent that he purported to aver therein. It was his argument that these averments, which form the very content and substance of the application, are themselves sufficient to render the application fatally defective and invalid. On that basis, he applied that the application be struck off.

On the other hand, Mr. *Nderere* disputed the allegation that the founding affidavit was replete with hearsay, contending instead that the averments made by Mr. Chivanga were grounded in the pleadings filed in the main matter.

Mr. *Chimhofu's* argument that the affidavit is fatally defective because it contains hearsay is misplaced. The mere inclusion of hearsay evidence in an affidavit deposed to by a person who has personal knowledge of the facts of the case does not invalidate the whole affidavit. The established principle is that hearsay evidence is simply disregarded by the court for being inadmissible, but it does not render the whole affidavit or application defective. Courts routinely sift through affidavits, separating admissible evidence from inadmissible material, and proceed to determine the matter on the basis of the competent evidence before them.

To hold otherwise would mean that any affidavit containing even a single hearsay statement would collapse the entire application, which is neither the law nor practice. The proper approach is for the court to strike out or ignore the hearsay portions and rely only on evidence within the deponent's personal knowledge. In this case, Mr. Chivanga expressly stated that as the applicants' former legal practitioner, he had direct involvement in the matter and personal knowledge of the facts leading to the default judgment. Therefore, even if some averments are second-hand, that does not nullify the application. It merely affects the weight the court attaches to those specific statements.

Mr *Chimhofu's* reliance on *Bubye Minerals (Pvt) Ltd & Another* v *Rani International Ltd SC* 60/2006 on this issue is misplaced. That case dealt with a summary judgment application, where the rules require the verifying affidavit to be sworn by a person with direct personal knowledge of the facts. In that case the deponent to the application had no such knowledge, as he was not employed by the applicant at the time of the transactions and relied solely on records and consultations with the applicant's employees. The High Court had granted the application for summary judgment. On appeal to the Supreme Court, the Supreme Court held that the affidavit by the applicant's deponent amounted to hearsay, leaving no proper affidavit before the court and rendering the application invalid.

What is evident from the *Bubye Minerals* case is that the deponent was not competent to depose to the affidavit, as he lacked personal knowledge of the facts giving rise to the application for summary judgment. By contrast, in the present matter, Mr. Chivanga's affidavit is grounded in his personal knowledge as the former legal practitioner who handled the applicants' case from its inception until the default judgment was granted. Any hearsay averments in his affidavit, do not automatically vitiate the application as he is competent to depose to the affidavit. The hearsay averments are simply disregarded by the court, which proceeds on admissible evidence.

The present case is therefore distinguishable from the *Bubye Minerals* case. The distinction lies in the fact that where a deponent is competent to testify on the basis of personal knowledge of the facts, the inclusion of hearsay in their affidavit does not vitiate the entire application. Such hearsay is simply disregarded by the court, which proceeds to determine the matter on the strength of admissible evidence. By contrast, where a deponent has no personal knowledge of the facts at all and relies exclusively on hearsay, the effect is far more serious: the affidavit cannot stand as proper evidence, and the application is rendered defective because, in law, there is no valid affidavit founding it. In *casu* Mr. *Chimhofu's* contention that hearsay renders the present application fatally defective to the extent that it should be struck off cannot be sustained. It is hereby dismissed.

(iii) Application fatally defective because of lack of supporting affidavits by applicants

Mr. *Chimhofu's* further argument was that the application is fatally defective and should be struck off because the applicants did not attach supporting affidavits to the founding affidavit deposed to by Mr. Chivanga. Mr. *Nderere* correctly countered that attaching a supporting affidavit is not a requirement of the rules, and I am in agreement with his position. Rule 58(4) of the High Court Rules, does not impose any obligation on a party to file supporting affidavits in addition to the founding affidavit. What it requires is a founding affidavit sworn by a person with personal knowledge of the material facts in dispute. That person may be the litigant or another individual who has direct knowledge of the events.

The decisive test is competence and personal knowledge, not the number of affidavits filed. Accordingly, a litigant is not obliged to file a supporting affidavit merely because the founding affidavit is deposed to by someone other than the litigant. As long as the founding affidavit is sworn by a person competent to testify on the facts, the application is procedurally sound. Supporting affidavits are optional; they serve only to corroborate or reinforce the founding affidavit but are not mandatory.

Courts have consistently emphasized that the founding affidavit is the cornerstone of the application, and it is on that affidavit that the application must stand or fall. The critical requirement is the presence of at least one affidavit sworn by a person with personal knowledge of the facts. Where that requirement is met, the application remains valid even in the absence of supporting affidavits.

Therefore, there is no merit in this point *in limine*. It must be dismissed.

Merits

The default judgment giving rise to the present application was granted at trial stage. The applicants were in default on the date of trial. In explaining why, the applicants were in default at trial and why a default judgment was granted, Mr. Chivanga averred that the summons under HC 428/23, seeking declaratory relief and transfer of title, had been consolidated with case HCH 8245/22 by order of Justice Mambara in March 2025. He claimed that, following consolidation, the applicants' legal practitioners received no notice of set down on the IECMS and believed the matter had not yet been scheduled for trial. During handover of the file to Mr. *Nderere*, he asked Mr *Nderere* to follow up with the Registrar on the position of the matter. It was then allegedly discovered that the matter had generated a separate case number, HC 428/23-1, to which Scanlen & Holderness was not electronically linked. As a result, the law firm purportedly received no notifications and remained unaware that the matter had been heard and determined in default on 16 March 2026. Mr. Chivanga further asserted that the Registrar later confirmed the law firm did not appear on the system for that case, explaining the absence of notifications.

By contrast, Mr. *Chimhofu*, for the first respondent, argued that both the applicants' law firm and the applicants had always been linked to the case and that the applicants' emails were present in the system. He further pointed out that the applicants themselves had not filed affidavits explaining why they claimed they were never linked to the matter.

A review of the documents filed in the IECMS portal under case HC 428/23-1 makes it clear that Mr. Chivanga's averments cannot be regarded as truthful. His claim that HC 428/23-1 was created after consolidation of HC 428/23, and HCH 8245/22 in March 2025 is incorrect. The IECMS portal shows that the case number HC 428/23-1 was generated in September 2023, when physical files were migrated into the electronic system. As far back as 12 December 2023, Mr. Chivanga himself uploaded a letter under HC 428/23-1 addressed to the Registrar, confirming that Scanlen & Holderness represented the plaintiffs. In that letter, he acknowledged receipt of the Registrar's communication dated 30 November 2023 and reiterated that the plaintiffs' details had already been provided when linkage was requested on 15 November 2023. This demonstrates that HC 428/23-1 was already active by the time the consolidation of HC 428/23 and HCH 8245/22 was ordered and that Scanlen & Holderness was linked well before the consolidation.

The consolidation of HC 428/23 and HCH 8245/22 was ordered on 19 March 2025 by Justice Mambara, under case number HC 428/23-1, which had already existed on IECMS since September 2023. It was therefore inaccurate for Mr. Chivanga to aver that Scanlen & Holderness was not linked after consolidation. The record also contradicts Mr Chivanga's claim that neither the firm nor the plaintiffs received notices. For instance, the letter of 19 May 2025 from Scanlen & Holderness, written by Mr. *Nderere* to the registrar confirmed their professional interest in the consolidated matter and stated that they had filed a notice of set down for the Pre-Trial Conference.

The Joint Pre-Trial Conference Minute dated 13 May 2025 records Mr. Chivanga's attendance as plaintiffs' legal practitioner, assisted by Mr. *Nderere,* alongside the 1st plaintiff and counsel for the defendants. The document was signed on 12 June 2025, with Mr. *Nderere* signing for the plaintiffs, and was uploaded on 16 June 2025 by Mr. Chivanga from his portal. This is clear proof that Mr Chivanga's portal was functional and linked. Similarly, the Notice of Set Down dated 3 June 2025, authored by Mr. *Nderere,* is direct evidence of active participation.

Further evidence includes the Case Management Order of 2 July 2025 before Justice Muchawa, where Mr. *Nderere* appeared for the plaintiffs. The Registrar's letter of the same date, addressed to Mr. Chivanga and Mr. Rabvukwa, confirmed referral of the matter to trial and directed the filing of a notice of set down. Later, the Notice of Hearing dated 12 February 2026 was copied to Scanlen & Holderness and Mr. Chivanga, notifying them of trial before Justice Dembure on 16 March 2026. This demonstrates continued linkage of Mr Chivanga and receipt of notices under HC 428/23-1.

It was also incorrect for Mr. Chivanga to aver that consolidation occurred at the Pre-Trial Conference. The record shows that consolidation was ordered earlier, on 19 March 2025, by Justice Mambara, before the Pre-Trial Conference was held in June 2025. Mr Chivanga's misstatement undermines the accuracy of his founding affidavit.

Furthermore, while Mr. Chivanga claimed that the Registrar later confirmed Scanlen & Holderness was not linked to the case, no proof of such confirmation was furnished. The correspondence contains no written verification from the Registrar. The only letter raising the issue of a technical glitch is dated 30 April 2026, authored by Mr. *Nderere,* which records the firm's own assertion but does not attach any Registrar's confirmation.

Mr. Chivanga also averred that between April and May 2015 the applicants entered into a written agreement of sale with the first respondent, made payments, and later faced

repudiation in 2022. These averments read as though Mr Chivanga was directly involved, yet he was not a party to the transaction. In reality, he was recounting what he had been told or what he read in the documents. At law, a deponent must confine themselves to facts within their personal knowledge. Statements made without such knowledge amount to hearsay and carry no evidential weight.

Similarly, his averments regarding execution of the default judgment suffer from the same defect. Mr Chivanga was not the party who received or acted upon the Sheriff's attachment documents, and his statements are therefore hearsay.

Disposition

In light of the foregoing, the court finds that the founding affidavit deposed to by Mr. Chivanga contains several material misstatements of fact and hearsay averments which undermine its credibility and evidential value. Taken together, the misstatements of fact and hearsay averments leave the founding affidavit without any proper evidential foundation. Since an application must stand or fall on the strength of its founding affidavit, this one cannot sustain the relief sought. There is no reliable basis upon which the court can grant the application for stay of execution pending determination of the matter on the return date.

In the result, the application is dismissed with costs.

MUREMBA J…….

Scanlen & Holderness, applicants' legal practitioners
Rusinahama-Rabvukwa, first respondent's legal practitioners